

defective for the reasons stated. If Plaintiff files an amended complaint, Plaintiff may be able to allege facts to state common counts other than account stated and open book account based on the current and additional facts Plaintiff may set forth. Leave to amend as to the common counts shall include leave to amend to allege common counts other than the ones currently pled in the complaint.

Special Demurrers for Uncertainty

Having sustained a general demurrer to each of the four causes of action as stated above, the Court does not reach the special demurrer for uncertainty to those causes of action.

7. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

***HEARING ON MOTION IN RE: STRIKE**

FILED BY: RAI, JEFFREY L.

TENTATIVE RULING:

Before the Court is a motion by defendant Jeffrey Rai to strike portions of plaintiff Kenneth Rai's complaint. For the reasons set forth, the motion is **denied as moot** based on the Court's concurrent ruling on the defendant's demurrer.

8. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**

FILED BY:

TENTATIVE RULING:

The motion to be relieved as counsel for Priscella Percy, brought by Khaldoun Baghdadi of Walkup, Melodia, et al., and Mikal Watts of Watts, LLP, is granted. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.

9. 9:00 AM CASE NUMBER: MSC16-02404

CASE NAME: ACOSTA VS REMINGTON LODGING

***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Plaintiff Rina Acosta moves for preliminary approval of her class action settlement with defendant Remington Lodging & Hospitality, LLC. Preliminary approval was granted on September 12, 2025. Plaintiff separately moved for attorney's fees, costs and a service award. That motion initially was set by the clerk's office for a hearing on July 9, 2026. In order to hear the two motions together, the Court reset the hearing on the fee motion to February 19, 2026. The two motions will be considered together.

A. Background and Settlement Terms

The original complaint was filed by plaintiff on December 20, 2016, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various

ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, and failure to pay all wages due on separation.

On August 5, 2020, the Court granted, in part, plaintiff's motion for class certification, certifying a class of employees with respect to the rest period and derivative final pay allegations, and denying the motion as to other claims. The definition of "class" in the settlement (Par. 1.4), however, includes "all persons who are or previously were employed by Defendant who were classified as non-exempt in the State of California and worked at least one rest-break eligible shift during the Class Period." Counsel have clarified that the class proposed for settlement is not broader than the existing certified class.

The settlement would create a gross settlement fund of \$850,000. The class representative payment to plaintiff would be up to \$12,500. Attorney's fees would be \$283,305 (one-third of the settlement). Litigation costs would not exceed \$145,000 (but were initially estimated at \$135,726). The settlement administrator's costs would not exceed \$9,750. The net amount paid directly to the class members would be about \$408,718. The fund is non-reversionary. Based on the estimated class size of 571, the average net payment for each class member is approximately \$715.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be tendered to the State Controller's unclaimed property fund.

Since preliminary approval, the administrator has given notice to the class. Mailed notice was provided to 568 class members. Five were returned as undeliverable. Based on follow-up, five new addresses were obtained and notice was remailed. No class member requested exclusion. No member submitted a written objection.

The settlement contains release language (See Par. 5.3) covering "any alleged failure to provide compliant rest breaks, or compensation in lieu thereof; and (2) any alleged failure to pay timely wages due upon separation; and (3) Industrial Welfare Commission Wage Order violations referenced in the Operative complaint in relation to the allegations listed above." Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

The released wage claims are limited to those arising from alleged rest break violations.

Informal and formal written discovery was undertaken. The matter settled after arms-length negotiations, which included two sessions with two different experienced mediators.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers (specifically the Boucher declaration), include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees, costs and representative service award

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

In her motion for attorney’s fees, plaintiff submitted a “Notice of Lodging Boucher LLP’s Confidential Time and Lodestar Report in Support of Motion for Final Approval of Class Action Settlement and Attorneys’ Fee, Costs and Service Payment.” The document, however, was filed in the public file. In order to submit a document under seal, a party must comply with California Rule of Court 2.551, which requires that any such document be submitted with an application for an order sealing the record,

which must be accompanied by a redacted version of the document for the public file, and an unredacted version identified as filed conditionally under seal. This was not done, and the document became part of the public file. Moreover, it is not clear that a motion to seal could have been granted under the criteria set forth in CRC 2.550. Fee records are routinely made part of the public court file as part of attorney's fee applications. Moreover, summaries of attorney time are often accepted in lieu of actual timesheets.

Counsel has calculated a lodestar fee amount for purposes of this motion. The final amount is \$794,777, based on a total of 1,723.90 hours, at a blended hourly rate \$461. The imputed multiplier is 0.35. Under these circumstances, no adjustment in the requested fee is required. The fee is reasonable and is approved.

Litigation costs are requested in the amount of \$136,371.82. While they are relatively high for this type of case, the drawn-out and heavily litigated nature of this case resulted in higher costs. They are reasonable and are approved.

The Settlement Administrator's costs of \$9,750 are reasonable and are approved.

The requested representative payment of \$12,500 for plaintiff is reviewed under the criteria discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Ms. Acosta attests to her time spent on this matter, which she estimates at 51 hours. She accepted some risk that her participation would make it harder for her to secure other work. She also signed a general release, which is broader than that of the class as a whole, although she does not identify any other claims of significant value. All things considered, the requested payment of \$12,500 is reasonable and is approved.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, and grants both the motion for final approval and the motion for attorney's fees.

Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. They are further directed to prepare a judgment reflecting the terms of the settlement. The judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. The date for the compliance hearing shall be set in consultation with the clerk for Department 39, but shall be held in Department 16. As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

10. 9:00 AM CASE NUMBER: MSC21-01298
CASE NAME: MARIO R LOPEZ VS. ELECTRIC TECH CONSTRUCTION
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY: